1.

CASE #	CASE NAME	HEARING NAME
CVRI2105663	BRANDON VS BURRELL	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiff Lisa Brandon
Responding party: Defendant Evelyn Burrell

This action arose from Defendant's sale of the residential property located at 29321 Big Range Road, Canyon Lake, California to Plaintiff pursuant to a written Residential Purchase Agreement (RPA). Plaintiff alleged Defendant concealed the true nature of the home during escrow and hid numerous defects from Plaintiff. The matter was heard via bench trial on August 5, 6, and 7, 2025. The Court issued its Final Statement of Decision on January 30, 2026.

The court found Burrell breached the RPA. The court found the contract for sale of the property was extinguished and canceled. The court initially did not award any amount for consequential damages because no evidence was presented regarding the cost of each repair needed. However, the "Objections" section of the Statement of Decision notes the Court awarded $25,666.83 to Plaintiff for consequential damages related to mold inspection and removal and $9,500 to replace the A/C unit. The court found for Plaintiff for the cause of action alleging a violation of Civil Code §1102 – statutory duty to disclose known defects. The court found for Plaintiff with respect to the deliberate concealment and negligent concealment causes of action. Finally, the court found for Plaintiff with respect to the fraudulent misrepresentation cause of action.

The Court ordered prevailing party Plaintiff to submit a proposed judgment within thirty (30) days of the Final Statement of Decision. The Court set the matter for an OSC re receipt of Proposed Judgment as to Plaintiff and Plaintiff's counsel on March 2, 2026.

On March 2, 2026, the court continued the OSC re receipt of Proposed Judgment because the proposed judgment needed to be resubmitted. (3/2/26 Minute Order.)

Plaintiff seeks attorney fees in the amount of $153,124.47 and costs in the amount of $10,642.79. On May 13, 2026, the court continued the hearing for the attorney fee motion because the final judgment had not yet been submitted. The court noted it would accept a new opposition and new Reply pursuant to CCP §1005. The final Judgment was filed on May 13, 2026.

On May 6, 2026, Defendant filed a Response to the Court's May 6, 2026, Tentative Ruling. Defendant contends the Court has "consistently omitted" the testimony that Plaintiff received approximately $95,000 from other co-defendants in this action. Defendant then notes the Court only awarded Plaintiff $25,666.83 in consequential damages against Defendant Burrell and $9,5000 to replace the A/C unit, for a total monetary award of $35,166.83. Defendant contends "Plaintiff has been more than fully compensated, and the rescission accounting must reflect this reality." (Response p.3:18-19.) Defendant then argues he is the prevailing party because Plaintiff has not offered any evidence of damages approaching $95,000 against Defendant Burrell individually. Since Defendant believes he is the prevailing party, Defendant argues the attorney fee motion must be denied in its entirety.

On May 13, 2026, the court continued the hearing on this motion to June 5, 2026. The Court noted it would accept supplemental opposition and reply briefs from the parties consistent with CCP §1005. Defendant filed a supplemental opposition on June 1, 2026, which does not comply with CCP §1005(b) for an Opposition brief, which is due nine (9) court days prior to a hearing. No supplemental reply has been filed, but that is likely given the lateness of the supplemental opposition.

The supplemental Opposition does not address the reasonableness of the requested attorney fees. Rather, it seeks to revise the Judgment in various ways. Defendant asks the court to revise the computation of prejudgment interest, make provision for credits due to Plaintiff's use and occupation of the property so that the Judgment contains offsets, amend the judgment to explain various things, "eliminate inconsistency" in the Judgment, and correct paragraph 14 of the judgment to eliminate fees and costs awarded as paragraph 13 shows fees and costs as "TBD."

Analysis

I. Supplemental Briefing

As noted, the court permitted supplemental briefing before the June 5, 2026, hearing. The supplemental Opposition was filed late which left little to no time for a supplemental Reply to be filed.

For this reason, the court is not considering the supplemental Opposition at all.
Importantly, the supplemental Opposition does not challenge the reasonableness of the attorney fees requested. Instead, the supplemental Opposition seeks to completely amend and revise the Judgment. The court cannot do this. Once judgment is entered, trial courts lose jurisdiction to set aside or amend the judgment except in accordance with specific statutory procedures, like on motion for a new trial or JNOV. (*APRI Ins. Co. v. Sup. Ct. (Schatteman)* (1999) Cal.App.4th 176, 182.)

Since all of Defendant's supplemental Opposition arguments rest on the unfounded premise that the court can amend the judgment at this point, the court does not consider the supplemental Opposition and rule on the merits of the attorney fee motion on the basis of the initial pleadings.

II. Awarding Attorney Fees

When authorized by contract, statute or "law," reasonable attorney fees are "allowable costs." (CCP §1033.5(a)(10)(A)-(C).) Civil Code § 1717 provides, in pertinent part, as follows:

> "(a) In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce

> that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs."

Civil Code §1717(b)(1) defines prevailing party—one who recovered a greater relief on the contract, or the court may determine there is no prevailing party. If the action has been voluntarily dismissed or dismissed pursuant to a settlement, there is no prevailing party. (Civil Code §1717(b)(2).)

The Lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate, and may be augmented or diminished based on several factors, including: "(1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (Id at 998.) The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.)

The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Fee motions should be based on detailed time record. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

III. Prevailing Party

The Court found Plaintiff is the prevailing party to be awarded reasonable attorney fees in an amount to be determined. (Judgment ¶13.) On May 13, 2026, the Court addressed Defendant's motion for clarification, correction, and supplementation of ambiguities and omissions in the Judgment. The Court reviewed Defendant's concerns with respect to the Judgment and signed the formal judgment in Court. Thus, the Court has already considered Defendant's arguments set forth in the Response to the Court's May 6, 2026, Tentative Ruling (filed on 5/6/26). Plaintiff is the prevailing party and is entitled to an award of attorney fees. Defendant's arguments to the contrary are not meritorious.

IV. Fees Requested

Plaintiff seeks attorney fees in the amount of $153,124.47 and costs in the amount of $10,642.79. Prior to May 6, 2025, Plaintiff was represented by Rob Schelling. (Brandon Decl. ¶3.) During the time of Schelling's representation, Plaintiff was billed a total of $45,352.39, consisting of $41,038 in fees and $4,314.39 in costs. (Brandon Decl. ¶6, Ex. A.) In May 2025, Plaintiff retained Gomez Law, APC. (¶8.) Gomez Law incurred $112,086.47 in fees from May 2025 to March 2026. (Gomez Decl. ¶16.)

Senior Attorneys at Gomez Law work at a rate of $525 - $575 per hour. (Gomez Decl. ¶9.) Associate attorneys work at a rate of $325 - $450 per hour. (Gomez Decl. ¶10.) Paralegals and law clerks work at a rate of $250 per hour. (Gomez Decl. ¶11.) Administrative Specialists work at a rate of $175 per hour. (Gomez Decl. ¶12.)

The total amount incurred through both representations is $163,767.26. (Gomez Decl. ¶33.) This consists of $153,124.47 in fees and $10,642.79 in costs. (Gomez Decl. ¶33.)

a. Mixed Contract and Non-Contract Nature of the Action

Defendant argues this action involved multiple theories of recovery, not all of which were contract-based. Defendant argues that when contract and non-contract claims are joined, apportionment is required unless the issues are so inextricably intertwined that segregation is impractical.

When a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, attorney fees are generally only recoverable on the statutory cause of action. (*Akins v. Enterprise Rent-A-Car Co. of San Francisco* (2000) 79 Cal.App.4th 1127, 1133–34.) This generally requires the apportionment of fees to ensure that the losing party is only required to pay for the fees incurred in prosecuting or defending the statutory action. (*Bell v. Vista Unified Sch. Dist.* (2000) 82 Cal.App.4th 672, 687.) "However, such fees need not be apportioned when incurred for representation on an issue common to both causes of action in which fees are proper and those in which they are not." (*Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 349.) "Moreover, 'apportionment is not required when the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.'" (*Id.*) "[A]pportionment of th[e] award [of attorney fees] rests within the court's sound discretion." (*Maxim Crane Works, L.P. v. Tilbury Constructors* (2012) 208 Cal.App.4th 286, 297.)

Here, Plaintiffs claims were based on a single real estate transaction and were litigated on a common set of facts. The claims were supported by the same evidence and witnesses. Plaintiff's claims for breach of contract, statutory nondisclosure, and fraud were based on Defendant's alleged failure to disclose material defects in connection with the sale of the property. The Court found "Defendant knowingly withheld and concealed material facts regarding the condition of the subject property and made false representations of material fact to induce Plaintiff's purchase of the property, upon which Plaintiff reasonably relied." (Judgment ¶2.) Defendant does not explain how the work and time spent on this matter could be apportioned in any real way. Defendant states this argument in a brief and conclusory manner with no supporting evidence. Apportionment of fees in not appropriate in this instance.

b. Disparity Between Relief Sought and Relief Obtained

Defendant notes Plaintiff seeks $153,124.47 in attorney fees which is more than four times the monetary component awarded to Plaintiff by the Final Statement of Decision - $35,166.83. Defendant argues the disparity in these amounts is “significant and directly implicates the degree of success factor which California courts have identified as the most critical factor in determining the reasonableness of a fee award.” (Opp. p. 5:13-15.) Again, Defendant makes this argument in a brief and conclusory manner. This argument by itself is not sufficient to reduce the requested fee award.

c. Fees Charged

Defendant challenges the billing entries generally without pointing to any specific entries that are problematic. Defendant argues there are various block-billing entries of time and complains such entries make it impossible for the court to apportion out the time spent on the contract versus non-contract issues. As discussed above, apportionment is not appropriate. Since Defendant only complains of block billing with respect to the difficulty in apportioning out time, this argument is not relevant.

Defendant generally argues counsel’s hourly rates must be supported by evidence of prevailing community rates. The hourly rates range from $525 - $575 per hour for senior attorneys and $325 - $450 per hour for associate attorneys. (Gomez Decl. ¶¶9-10.) These rates are not inherently unreasonable. The rates for paralegals and administrative specialists are lower and also appropriate. The motion is supported by counsel’s detailed declaration explaining the time spent on the matter and the fees incurred. (See Gomez Decl. generally.) Defendant does not provide any evidence that the rates charged are unreasonable or excessive for the type of matter and general market rates.

d. Costs

Defendant also challenges Plaintiff’s requested costs totaling $10,642.79. To obtain a cost award, the prevailing party must serve and file a memorandum of costs. (CRC 3.1700(a).) The memorandum of costs must be “verified by the statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (CRC 3.1700(a)(1).) Initial verification will suffice to establish the reasonable necessity of the costs claimed. There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum. Supporting documentation must be submitted only if costs have been put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) The costs memorandum must be filed and served within the earlier of: (1) 15 days after the clerk’s service of notice of entry of judgment or dismissal; or (2) 15 days after any party’s service of such notice; or (3) 180 days after entry of judgment. The time limit is mandatory and failure to timely file and serve a cost bill may result in waiver of costs. (*Hydratec, Inc. v. Sun Valley 260 Orchard*

& Vineyard Co. (1990) 223 Cal.App.3d 924, 929.) However, the court has discretionary power to grant relief under CCP §473(b) for “inadvertence” or “excusable neglect.” (See id at 927.)

Defendant argues that Plaintiff has not provided a compliant cost bill but rather simply asked Defendant to review billing appearing in attorney invoices without any detail as to the category of cost claimed. Plaintiff argues Defendant’s objections are only based on the format of Plaintiff’s presentation of claimed costs and do not identify any specific cost item that is non-recoverable or improperly claimed.

In support of the motion, Plaintiff provides the declaration of attorney Charles G. Gomez, who provides billing records for the time incurred in this matter. Gomez explains “Gomez Law incurred litigation costs totaling $6,328.40, which were reasonably and necessarily incurred in connection with trial and post-trial proceedings.” (Gomez Decl. ¶31.) Plaintiff Lisa Brandon’s declaration addresses the fees incurred by her prior counsel, Rob Schelling. Plaintiff explains she paid $4,314.39 in costs to Schelling. (Brandon Decl. ¶6.) Plaintiff provides copies of the invoices she received from Schelling’s firm. (Brandon Decl. Ex. A.)

Importantly, Plaintiff has not provided a cost memorandum. Plaintiff simply filed the instant motion for attorney fees and costs. No separate cost memorandum was ever filed. This does not comply with CRC 3.1700(a). Even if the court were to find that Plaintiff attaching her attorney’s billing invoices constitutes a memorandum of costs (it doesn’t), the costs incurred by prior counsel Schelling are not “verified by the statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (CRC 3.1700(a)(1).) Gomez’s declaration states the costs incurred by his firm “were reasonably and necessarily incurred in connection with trial and post-trial proceedings.” (Gomez Decl. ¶31.) However, again, the bigger issue is that Plaintiff never filed a cost memorandum.

Plaintiff argues this is an issue of form over substance and does not warrant striking Plaintiff’s claimed costs. Plaintiff does not provide any authority to support this argument. Plaintiff does not even acknowledge she did not file a memorandum of costs. Plaintiff does not ask for relief under CCP §473(b) for “inadvertence” or “excusable neglect.” Instead, Plaintiff contends, without any supporting authority, that simply providing counsel’s billing statements is enough to constitute a memorandum of costs.

Given the lack of cost memorandum, the court strikes Plaintiff’s requests for costs.

Summary

Defendant has not demonstrated any of Plaintiff’s claimed attorney fees are unreasonable or excessive. Grant Plaintiff’s motion for attorney fees without reduction or adjustment.

Given the lack of cost memorandum, the court strikes Plaintiff’s requests for costs.

The matter is set for an OSC re receipt of a proposed Amended Judgment as to Plaintiff and Plaintiff's counsel on incorporating this order for Attorney Fees. OSC set for 7/10/2026 at 8:30 a.m. in Dept. 6.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506010	LIU VS MASCOT INTERNATIONAL LOGISTICS INC.	MOTION TO STRIKE DEFENDANT'S CIV-141, OR ALTERNATIVELY FOR AN ORDER DECLARING THE PURPORTED AUTOMATIC EXTENSION INEFFECTIVE AND PERMITTING ENTRY OF DEFAULT

CASE #	CASE NAME	HEARING NAME
CVRI2506010	LIU VS MASCOT INTERNATIONAL LOGISTICS INC.	HEARING RE: MOTION FOR SANCTIONS

Tentative Ruling:

Moving party: Plaintiff Cong Liu
Responding party: Defendant Mascot International Logistics, Inc.

Plaintiff Cong Liu ("Plaintiff") alleges that purchased 27 display cabinets ("Cargo") using her own funds for a commercial customer and retained ownership and bore all economic risk associated with the Cargo. The Cargo was shipped from China to the United States with House Bill of Lading No. SZOH24010453. After the cargo arrived in the United States, Defendant Mascot International Logistics, Inc. ("Defendant") took custody of it and refused to release it, despite Plaintiffs repeated demands. Plaintiff alleges that Defendant falsely misrepresented that the Cargo was detained due to a carrier lien and warehouse lien in order to coerce Plaintiff into paying additional charges.

On November 18, 2025, Plaintiff filed the Complaint, which asserts four causes of action for: (1) Conversion; (2) Trespass to Chattels; (3) Intentional Interference with Possessory Rights; and (4) Fraud and Deceit.

Prior to filing the instant action, Plaintiff filed a small claims case against Defendant regarding the same Cargo on March 6, 2024, Case No. SCCO2400217, which was dismissed on June 7, 2024. On March 18, 2024, Plaintiff filed a limited jurisdiction case, Liu v. Mascot International Logistics, Inc., Case No. CVCO2401737 ("LJ Action"), which was voluntarily dismissed on November 18, 2025, the same date the instant action was filed. On April 28, 2026, the court stayed all proceedings in the present action pending a ruling on Defendant's Motion to Vacate Dismissal in the LJ Action. The Court denied the Motion to Vacate the dismissal on 5/20/2026.